
Statement of the case.

setts, which declares that "no subject shall be held to answer for any crime or offence, until the same is fully and plainly, substantially and formally, described to him;" nor be "de-spoiled or deprived of his property, immunities or privileges, put out of the protection of the law, exiled or deprived of his life, liberty or estate, but by the judgment of his peers, or the law of the land,"* is answered by the construction which the Supreme Court of that State has given to these provisions. It has held that the proceeding taken for the removal of the plaintiff could not in any just and proper sense be deemed a criminal procedure, in which a party has a right to a full, formal, and substantial description of the offence charged; and that it was not essential to the validity of the order of removal that it should be founded on legal process according to the signification of the words "*per legem terræ*" as used in Magna Charta, or in the Declaration of Rights.† This construction of the highest court of the State, not called in question by any conflicting decision of that court, is conclusive upon us.‡

We find no error in the ruling of the Circuit Court, and its judgment must therefore be

AFFIRMED.

PALMER v. DONNER.

A district judge has no authority to sign a citation upon a writ of error to a State court. When the citation has been thus signed, the writ of error will be dismissed on motion.

THIS was a motion, made by *Mr. J. H. Bradley*, to dismiss a writ of error directed to the Supreme Court of the State of California, on the ground that the citation had been signed by a district judge, which the record showed was the fact.

* Declaration of Rights, Art. 12.

† Randall, Petitioner for Mandamus, 11 Allen, 473.

‡ Provident Institution v. Massachusetts, 6 Wallace, 630.